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25-CIV-02212 JESUS AGUILAR VS BC CAFE, INC.

LINE 1

JESUS AGUILAR
BC CAFE, INC.

DESIREE RUIZ ALFARO
CHRISTINE H. LONG

DEFENDANT: BC CAFÉ, INC'S MOTION TO STRIKE AND IN THE ALTERNATIVE DEMURRER

TENTATIVE RULING:

Defendant BC Café, Inc.'s ("BC Café") Motion to Strike and in the Alternative Demurrer is DENIED/OVERRULED for the reasons described below.

BC Café's Request for Judicial Notice is GRANTED, but not for the truth of the matters therein. Plaintiff's Request for Judicial Notice is GRANTED, but not for the truth of the matters therein.

This case involves wage and hour allegations brought by Plaintiff Jesus Aguilar ("Plaintiff") against thirteen entities: BC Café; Sun & Garden, Inc.; Farm House Kitchen Thai; Farmhouse Express, Inc.; Farmhouse Factory, Inc.; Farmhouse Kitchen Thai Cuisine; Farmhouse LAX, Inc.; BKK Café, Inc.; Bombay Rita, Inc.; Thai Tables, Inc.; Farmhouse Enterprise, LLC; Summer & Po, Inc.; and Sweet Bombay, Inc. (collectively, "Defendants").

BC Café moves to strike joint employer allegations and class allegations from Plaintiff's Complaint, arguing that Plaintiff only worked at BC Café, therefore Plaintiff's claims against the other defendants in the case (which BC Café refers to as "Non-Employer Defendants") are improper.

The Court notes that BC Café does not have standing to make arguments on behalf of non-moving parties, therefore arguably does not have standing to make the arguments in its motion. BC Café argues throughout its motion that it was Plaintiff's employer and states that it brings its motion "to Strike Portions of the Complaint pertaining to class allegations and to strike all claims against the Non-Employer Defendants." (Mot. at p. 1:2-3.) BC Café argues that the class allegations are improper because they can only be brought against Plaintiff's "employers," which again, BC Café admits it was. Therefore, through its own admission, the grounds raised for striking the Complaint are inapplicable to BC Café.

Nevertheless, pursuant to Code of Civil Procedure ("CCP") § 436, the Court can strike allegations upon a motion brought pursuant to CCP § 435, or "at any time in its discretion, and upon terms it deems proper." The Court therefore proceeds to rule on the substantive merits of this motion *sua sponte*. (*CPF Agency Corp. v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1020–1021.) The Court notes that Plaintiff did not raise the issue of standing in its opposition and opposed the motion as if it had been brought by all Defendants. Therefore, the Court finds that making a substantive ruling *sua sponte* will not prejudice Plaintiff.

Legal Standard

"Unless the action is a limited civil case, the motion [to strike] lies either: [¶] To strike any 'irrelevant, false or improper matter inserted in any pleading'; or [¶] To strike any pleading or part thereof 'not drawn

or filed in conformity with the laws of this state, a court rule, or an order of the court.’ [CCP § 436 (emphasis added)].” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) ¶ 7:167, emphasis original.)

“As with demurrers (¶ 7:8), the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice (e.g., the court's own files or records).” (*Id.* at ¶ 7:168.) “The court may take judicial notice of facts under the same rules as for demurrers.” (*Id.* at ¶ 7:195.) “Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed.” (*Id.* at ¶ 7:15.)

“In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: ‘[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.’” (*Id.* at ¶ 7:197.5.)

“The complaint must contain ‘a statement of the facts constituting the cause of action, in ordinary and concise language.’” (*Id.* at ¶ 6:120.) “Less particularity is required in pleading matters of which the defendant has superior knowledge; e.g., allegations as to D’s knowledge or notice or intent. Such matters may be alleged on information and belief (¶ 6:225); and the complaint will be upheld ‘so long as it gives notice of the issues sufficient to enable preparation of a defense.’” (*Id.* at ¶ 6:121.5, citations omitted.)

“[P]laintiff need only plead such facts as are necessary ‘to acquaint a defendant with the nature, source and extent of his claims.’—‘a complaint is adequate so long as it apprises the defendant of the factual basis for the claim’” (*Id.* at ¶ 6:128, citations omitted.)

Joint Employer Allegations:

Plaintiff alleges the following in his Complaint:

Plaintiff is informed and believes, and based upon that information and belief alleges, that Defendants are, and at all times herein mentioned, were: [¶] (a) A business entity conducting business in numerous counties throughout the State of California, including

San Mateo County; and, [¶] (b) The former employers of Plaintiff, and the current and/or former employers of the putative Class because Defendants suffered and permitted Plaintiff and the Class to work; and/or exercised control over their wages, hours, or working conditions; and/or engaged Plaintiff and the Class, thereby creating a common law employment relationship.

[. . .]

Plaintiff is informed and believes and thereon alleges that at all relevant times each Defendant, directly or indirectly, or through agents or other persons, employed Plaintiff and the other employees described in the class definitions below, and exercised control over their wages, hours, and working conditions. Plaintiff is informed and believes and thereon alleges that, at all relevant times, each Defendant was the principal, agent, partner, joint venturer, joint employer, officer, director, controlling shareholder, subsidiary, affiliate, parent corporation, successor in interest and/or predecessor in interest of some or all of the other Defendants, and was engaged with some or all of the other Defendants in a joint enterprise for profit, and bore such other relationships to some or all of the other Defendants so as to be liable for their conduct with respect to the matters alleged below. Plaintiff is informed and believes and thereon alleges that each Defendant acted pursuant to and within the scope of the relationships alleged above, that each Defendant knew or should have known about, and authorized, ratified, adopted, approved, controlled, aided, and abetted the conduct of all other Defendants.

(Complaint, ¶¶ 9, 12.)

The Court concludes that Plaintiff has adequately alleged his joint employer allegations. As Plaintiff argues in his opposition to the motion, additional details regarding the level of control, involvement, etc. that each Defendant had over Plaintiff's employment are uniquely in the Defendants' possession. The allegations in the Complaint are sufficient to put the Defendants on notice as to the nature, source, and extent of Plaintiff's claims: Plaintiff alleges certain enumerated California Labor Code and Business and Professions Code violations against Defendants arising from his employment with Defendants in San Mateo County as an hourly-paid, non-exempt employee from approximately January 2020 to October 2023. *See Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451

Complaints in actions against multiple defendants commonly include conclusory allegations that all of the defendants were each other's agents or employees and were acting within the scope of their agency or employment. Prominent treatises, while recognizing that the Supreme Court has described such allegations as "egregious examples of generic boilerplate" (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 134, fn. 12), still advise that "such allegations may be necessary," especially "at the outset of a lawsuit, before discovery." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2012) ¶¶ 6:152 to 6:153, pp. 6-48 to 6-49; *see also* Cal. Forms of Pleading and Practice (Matthew Bender 2012) § 20.55, pp. 20-38.2 to 20-39 [providing forms for such "commonly used" allegations and noting that they constitute "a sufficient allegation of actual agency to withstand general demurrer"].)

Plaintiff also provides evidence through its RJN in support of its opposition of Defendant's common management groups, directors, etc. The Court does not suggest that this evidence standing alone is sufficient to ultimately prove joint employer status, but it provides some support for the generalized allegations. (*Martinez v. Combs* (2010) 49 Cal.4th 35 [setting forth the standard for joint employment in California].)

Class Allegations:

BC Café first argues that the class is overbroad and that it pleads no commonality among the entities. The Court rejects this argument for the reasons stated above.

BC Café next argues that a case against different employers "inherently will implicate different wage orders, policies, practices, time records, pay records and the like," but provides no evidence of this for the Court to judicially notice. Similarly, BC Café argues that Plaintiff's claims "cannot be typical" of employees who worked for other entities, but BC Café again fails to provide any evidence for the Court to judicially notice that demonstrates that Plaintiff's claims would not be typical. BC Café's arguments as to adequacy of representation fail for the same reason.

BC Café's arguments aside, case law holds that in a wage and hour class action, a determination as to the propriety of the class is best left until after discovery. (*Rose v. Medtronics, Inc.* (1980) 107 Cal.App.3d 150, 154 ["where there is a 'reasonable possibility' that the plaintiff in a class action can establish a community of interest among potential claimants, the preferred course is to defer decision on the propriety of the class action until an evidentiary hearing has been held on the appropriateness of class litigation"]; *Gutierrez v. California Commerce Club, Inc.* (2010) 187 Cal.App.4th 969, 979-980: ["only in mass tort actions (or other actions equally unsuited to class action treatment) [should] class suitability ... be determined at the pleading stage. In other cases, particularly those involving wage and hour claims [such as the instant action], class suitability should not be determined by demurrer."]);

Demurrer

BC Café does not raise any independent grounds for demurrer, making only a few passing references to the Complaint's ambiguity and "lack of conciseness." BC Café has failed to demonstrate that a demurrer lies.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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